

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Talisayan	Team: Squad #11	CCRB Case #: 201902823	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/18/2019 10:48 AM	Location of Incident: 3rd Avenue and 31st Street	Precinct: 72	18 Mo. SOL 9/18/2020	EO SOL 5/5/2021	
Date/Time CV Reported Mon, 03/25/2019 1:01 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 03/25/2019 1:01 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Alwyn Phillips	06629	930956	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Alwyn Phillips	Abuse: Police Officer Alwyn Phillips searched the vehicle in which § 87(2)(b) was an occupant.	[REDACTED]

Case Summary

§ 87(2)(b) filed the following complaint with the CCRB via mail on March 25, 2019.

On March 18, 2019, at approximately 10:48a.m., § 87(2)(b) was driving a tractor trailer when the vehicle was stopped by PO Alwyn Phillips of the 72nd Precinct at 3rd Avenue and 31st Street in Brooklyn. PO Phillips approached § 87(2)(b)'s vehicle and asked him to open the door of the cab. § 87(2)(b) opened the door and had his seat belt on. PO Phillips asked § 87(2)(b) for his license and registration. § 87(2)(b) unbuckled his seat belt to retrieve these documents from his wallet in his back pocket. The seat belt was across § 87(2)(b)'s body and did not retract when he unbuckled it. PO Phillips reached across § 87(2)(b) and pulled the seat belt off him with his hand (**Allegation A – Abuse of Authority**, § 87(2)(g)).

There is video evidence of the incident.

Findings and Recommendations

Allegation (A): Police Officer Alwyn Phillips searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was interviewed at the CCRB on April 9, 2019 [**Board Review 01**]. § 87(2)(b) testified that he did not unbuckle his seat belt until PO Phillips approached his vehicle and requested his driver's license and registration. The seat belt was across § 87(2)(b)'s body and did not retract when he unbuckled it. PO Phillips reached across § 87(2)(b) and pulled the seatbelt off him with his hand. § 87(2)(b) asked PO Phillips what he was doing and PO Phillips said that § 87(2)(b) did not have his seat belt buckled. PO Phillips issued § 87(2)(b) summons § 87(2)(b) § 87(2)(b).

PO Phillips was interviewed at the CCRB on May 8, 2019, and June 6, 2019 [**Board Review 03, 07**]. During his first interview on May 8, 2019, PO Phillips did not recall the interaction with § 87(2)(b). PO Phillips was scheduled for a second interview on June 6, 2019, so that he could view his body worn camera (BWC) footage. PO Phillips acknowledged that he reached through the door of § 87(2)(b)'s vehicle and into the cab of the tractor trailer to grab the seat belt. The seat belt was lying on § 87(2)(b)'s lap. PO Phillips tugged on the seat belt strap so that he could see the seat belt buckle clearly and because he wanted § 87(2)(b) to see that he could see the seat belt buckle and that it was not secured.

BWC footage provided by the NYPD's Legal Bureau on May 28, 2019 captures the incident; it begins with PO Phillips exiting his police vehicle to conduct the vehicle stop and ends with PO Phillips returning to his police vehicle after a summons is issued to § 87(2)(b) [**Board Review 04**]. From 42 seconds to 1:47 minutes, PO Phillips speaks with § 87(2)(b) regarding the reason for the vehicle stop with the driver's side door open. PO Phillips explains that he observed § 87(2)(b) without his seat belt on. At 1:41 minutes, PO Phillips can be heard asking § 87(2)(b) why his seat belt was not buckled in and the seat belt can be seen moving at the side of § 87(2)(b)'s seat. The BWC footage does not show PO Phillips breaking the plane of the vehicle's door. PO Phillips then returns to his police vehicle.

§ 87(2)(b), § 87(2)(g)

In the context of a vehicle stop, police are permitted a level of minimal intrusiveness to perform their duties and ensure personal safety People v. Vasquez, 106 A.D.2d 327 [**Board Review 09**]. The Court found that the officer’s initial breach of the vehicle plane was not “intrusive” given his intent to “communicate better” with the passenger.

§ 87(2)(b), § 87(2)(g)

[REDACTED]

Squad No.: _____11_____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date